IN THE COUNTY COURT AT LINCOLN

Claim number: 019JE538

BETWEEN:

MSEM UK LTD (Claimant)

and

FISHBONE CONSTRUCTION LTD (Defendant and Claimant on the counterclaim)

WITNESS STATEMENT OF MINDAUGAS GAUDIESIUS

Managing Director of the Defendant

1. I am Mindaugas Gaudiesius, Managing Director of Fishbone Construction Ltd, the Defendant and Claimant on the counterclaim ("Fishbone"). I make this statement from my own knowledge. Where I was told something by someone else, I say who told me.

Background

2. Fishbone is a labour supply company. We have worked with Macdonald Joinery & Construction Ltd ("Macdonald Joinery") for about 13 years. I deal mostly with its owner, David Macdonald, and mostly by telephone.

3. On the BBC Cardiff toilet refurbishment project at BBC Central Square (our reference FC2520), Macdonald Joinery was the main contractor and Fishbone was its subcontractor. Before 26 November 2025, Macdonald Joinery asked me by telephone, and not in writing, that Fishbone take over the site management of the project.

4. I had known Mr Mikheil Davidans for a long time. He had worked for Fishbone on other sites before, and invoiced Fishbone through his company, MSEM UK Ltd. I offered him the site manager role on this project personally. The agreement was verbal, at £300 a day. There was no written agreement, and no fixed end date for his own engagement was agreed.

5. When I received his first invoice for this project, he had included fuel and accommodation. I spoke to him and agreed to pay them. I knew that he left the site around noon every Friday to travel home. In the same conversation I agreed to pay a full day for Fridays on one condition: that all the works were completed on schedule. That condition applied only to the Friday full days. It was not put in writing.

6. The draft programme dated 19 November 2025 produced for Macdonald Joinery, which Mr Davidans had, shows a snagging meeting on Monday 9 February 2026 and handover on Friday 13 February 2026 (exhibit MG2). The 9 February snagging meeting did not take place. J4 Projects, the project manager on the programme, told me by telephone, in the week before the handover, that the client had decided not to hold it and to hold the

handover meeting on 12 February 2026 instead. I do not remember the exact day. That was not put in writing. With the BBC, this has been the usual practice on our work for the last three years. Mr Davidans started on site on 1 December 2025.

7. Fishbone supplied the labour. Two carpenters, I. Bulakevych and R. Drulit, were provided to Fishbone through Torin Construction Ltd, and Raitis Bikovs worked as a Fishbone subcontractor. Fishbone chose and paid for all of them. Mr Davidans, as site manager, directed them on site (exhibit MG4).

8. On his first day on site, I agreed with him that every day he would send me photographs of the progress and photographs of the site sign-in register, so that I could check who was on site. He did this through a Telegram group chat for the project, which I created on 1 December 2025. This is how Fishbone runs its projects: I set up a Telegram group for each one. The register photographs he sent run from 2 December 2025 to 6 February 2026 (exhibit MG1).

9. In December 2025 I was the site manager at the Roath Lock project and Mr Davidans was the site manager at Central Square. In the first working week of January 2026, Macdonald Joinery told me by telephone that they were unhappy with the costs and that one site manager was enough to cover five operatives across the two sites. I therefore left Mr Davidans as site manager on both sites. He spent most of his time at Central Square, and went to check progress at Roath Lock only when I asked him.

February 2026

10. On or about 30 January 2026 there was a pre-handover meeting at the site. I did not attend it. Attending site meetings was part of Mr Davidans's duties as site manager. The same day, after the meeting, Mr Davidans telephoned me. He said he needed to finish the works and that he would be ready for handover. He did not say which works. He did not tell me about any defects or snagging items, and he did not ask for more labour or help.

11. The photographs Mr Davidans sent me did not show the defects found later. They showed that the panels had still not been installed. I looked at them at the time and it did not look like a big job. I asked Mr Davidans whether he was in a position to finish, and he said yes.

12. On Thursday 5 February 2026 I telephoned Mr Davidans at 09:01 (exhibit MG6). From my experience I thought it was better to have spare hands in the week of the handover, so I asked him whether he needed any spare labour. He told me he was in control. I also asked him whether he was working the coming weekend, the last weekend before handover. He told me he was not working and that there was no reason to, because everything would be completed, and not to worry. He did not ask for more help and did not tell me that there was a problem.

13. The BBC Wales buildings at Central Square and at Roath Lock are both open at weekends. Most testing and decommissioning work in these buildings is done at weekends, when they

are emptier than on weekdays. The draft programme itself shows testing and commissioning starting on Saturday 7 February 2026 (MG2).

14. On 10 February 2026 Mr Davidans sent me a video and an image on WhatsApp of a damaged panel and asked whether I could get a replacement. The label on the panel was a colour reference. I replied that we did not have one and that I would try to find one. That was the only problem he raised with me in writing. At 13:03 that day I telephoned him about the panel. After that call he sent a photograph of the panel label at 13:35 (exhibit MG5).

15. On 3 February 2026 Dainius Drulia, an experienced site manager, started as site manager on a new Fishbone project at BBC Roath Lock (FC2602, BBC Roath Lock Toilets upgrade), where Sebastian Pabis was also working. Roath Lock is about a 20-minute drive from the Central Square project. Fishbone arranged for Mr Drulia to help at Central Square with the handover, and he worked there from 12 to 15 February 2026.

16. On 12 February 2026 the handover meeting took place. I was not there. I know about it from emails and WhatsApp messages from David Macdonald. At 15:11 that day Dave Newell of j4projects, copying the architects, emailed David Macdonald and Liam Price of EMCOR a list of 16 snagging items "following the snagging meeting today" and wrote: "We will need to delay handover until items 1-16 are complete." David Macdonald forwarded it to me at 15:32 with the words "This is just the start of it." (exhibit MG7). The list includes: cubicles set out from the back wall and the floor set out from the front wall; white shiny silicone to be replaced with matt; panels to be aligned; shadow gaps above the panels to be made good; bubbles on the cubicle doors; and damaged edges. As additional or to-follow items it lists fitting the sign, door stops, five handles and grey seats.

17. On 13 February 2026 I took part in a Teams meeting called by Dave Newell, with Liam Price of EMCOR and David Macdonald, about the snagging and how and when it would be finished. I took part on my way to Cardiff. I arrived in Cardiff that night, and I was not on site on 13 February.

18. The sign was not available to fit. On 19 February 2026 David Macdonald wrote that it was "not sent to site as yet", and Andrew Macdonald wrote that it was being finished and should be on site early the following week. On 23 February 2026 David Macdonald asked that the main toilets be completed for the Wednesday (exhibit MG8).

19. On 14 February 2026 I went to the site with Andrejus Prutkovas and planned with Mr Drulia and Mr Pabis how to rectify the works. Mr Drulia and Mr Pabis told me that Mr Davidans had left the site and, in their words, had finished his ten-week project. Those were their words. They also told me that he had been on site on 13 February and had left around noon.

After he left

20. Mr Davidans did not tell me he was leaving, and I did not tell him to leave or to go home. On 18 February 2026 I asked him by WhatsApp where the toilet signage was. He did not reply. On 22 February he messaged to ask when he would be paid. On 23 February I replied that Fishbone's payment was held until handover. On 27 February he asked again, and I replied that we would hand over on the Monday and then call to discuss how to close the matter. He replied "Ok, thanks." (exhibit MG5, with a translation of the Russian messages).

The invoices

21. MSEM invoiced Fishbone weekly. Invoice 552 was paid on 13 February 2026. Invoice 553 dated 8 February 2026 for £1,898 and invoice 554 dated 15 February 2026 for £1,891 are unpaid (exhibit MG3). I accept that Mr Davidans worked on site on the days in invoice 553, 2 to 6 February 2026, and on the days in invoice 554, 9 to 13 February 2026. I have no site register for 9 to 13 February. I was told on 14 February that he left site around noon on Friday 13 February, as he did on every Friday.

22. Fishbone has withheld both invoices because of the defects in the work and the cost of putting them right. I disputed the invoices in writing on 18 March 2026 (exhibit MG9).

The counterclaim

23. From 13 February to 1 March 2026 Fishbone paid for labour and materials to put right the work at Central Square. The costs are (exhibit MG10): Snag Doctor £530.00; Anton Kogut £1,400.00 (£600.00 for 13, 14 and 15 February, and £800.00 for 16, 20, 21 and 22 February); Dainius Drulia £2,300.00 (Central Square days only); Sebastian Pabis £3,730.69; Raitis Bikovs £112.50 (overtime); and Oleksii Starovoitov £308.75 (Monday 16 February, one day at £190 and five extra hours at £23.75). The total is £8,381.94 before VAT and CIS. All the bills have been paid from Fishbone's bank account: those of Snag Doctor, Mr Kogut, Mr Bikovs and Mr Starovoitov, and Mr Drulia's bills for the weeks ending 22 February and 1 March (paid on 6 and 13 March 2026). Mr Drulia's bill for the week ending 15 February was settled from an advance of £3,000 that he asked for and that Fishbone paid to him on 22 November 2025; £1,250 of the same advance was deducted from his bill for the week ending 22 February (exhibit MG10). Mr Pabis is not a subcontractor. He is employed by Fishbone on a fixed weekly wage, paid through payroll every week, including 13 February to 20 March 2026 (exhibit MG10). He worked 14 days and 3 hours at Central Square from 13 February to 1 March 2026. The cost to Fishbone of those days is his wages for them, £3,220.00, plus employer's National Insurance of £414.10 and employer's pension contribution of £96.59, which I have confirmed from his payslips: £3,730.69 in all. Mr Kogut's invoice dated 24 February 2026 says it is for January. That is a mistake: the dates are in February.

24. Fishbone's counterclaim is for £7,997.25, as stated in its Defence and Counterclaim. If the Claimant's claim of £3,031.20 (invoices 553 and 554 after CIS) were allowed, the net amount of the counterclaim would be £4,966.05.

Statement of truth

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Mindaugas Gaudiesius

Date: _____

Exhibits

- MG1 Site register photographs, 2 December 2025 to 6 February 2026
- MG2 Draft programme, BBC Cardiff L4 WC Remodel, 19 November 2025
- MG3 MSEM invoices 545 to 554
- MG4 Torin Construction bills, BBC Cardiff lines marked
- MG5 WhatsApp chat with Mr Davidans, 3 February to 12 July 2026, with translation
- MG6 O2 call records, calls to Mr Davidans only
- MG7 Email of 12 February 2026 15:11 and snagging list
- MG8 Emails of 19 and 23 February 2026
- MG9 My email of 18 March 2026 and the reply
- MG10 Rectification bills and proof of payment; Mr Pabis's timesheets, payslips and wage payments (bank details redacted)